

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

JOSE RAMOS,

INDEX NO.

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

S U M M O N S

P.O. ASHLEY TURZER (Shield #26919), THE CITY OF NEW
YORK, THE NEW YORK CITY POLICE DEPARTMENT and
POLICE OFFICERS JANE/JOHN DOES 1-10 (actual names
unknown at this time),

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
August 16, 2021

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

ASHLEY TURZER, (Shield #26919)
44th Precinct
2 East 169 Street
Bronx, New York 10452

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE RAMOS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

P.O. ASHLEY TURZER (Shield #26919), THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS JANE/JOHN DOES 1-10 (actual names unknown at this time),

Defendants.

-----X
Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, JOSE RAMOS, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.

2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.

3. Defendant P.O. ASHLEY TURZER (hereinafter "TURZER") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of her employment.

4. Defendant POLICE OFFICERS "JOHN" or "JANE" DOES were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant CITY and within the scope of their employment.

5. On or about May 17, 2020, the defendant TURZER was assigned to the 44th Precinct

of the NYPD at the time of the occurrences alleged in this complaint. She is being sued in both her individual and official capacities.

6. On or about May 17, 2020, the defendant POLICE OFFICERS "JOHN" or "JANE" DOES were assigned to the 44th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

7. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

8. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

9. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants TURZER and "JOHN" and "JANE" DOES.

10. In the late morning/early afternoon of May 17, 2020, plaintiff JOSE RAMOS returned to apartment 2G at 1455 Townsend Avenue, Bronx, NY 10452 where he lived. He was confronted by four (4) police officers from the 44th Precinct who proceeded to strike plaintiff about the body, face and head with their hands/fists and placed under arrest.

11. Plaintiff was transported to the 44th Precinct at which time shackles were placed on his wrists and ankles in a manner that caused lacerations, bleeding, pain and swelling.

12. Plaintiff was taken to St. Barnabas Hospital for injuries and complaints of pain to his

wrists and ankles where he was admitted for multiple days and remained shackled to his bed.

13. Plaintiff was arrested/detained and held in custody and not free to leave from the time of his arrest up until the time of his arraignment on May 21, 2020.

14. Plaintiff was required to make court appearances as a result of the charges against him from this incident.

15. Plaintiff's arrest was made by officers of the 44th Precinct, including defendant TURZER, without probable cause.

16. As a result of the aforementioned actions by the police officers, plaintiff JOSE RAMOS suffered serious permanent physical to his body and psychological injuries, including, but not limited to lacerations, contusions and scarring to his wrists and ankles bilaterally, requiring emergency room treatment at St. Barnabas Hospital and follow up medical care.

17. The Plaintiff is unable to identify at this time the names of any of the other individual officers involved, other than he believes that there were officers from the 44th Precinct.

18. On May 17, 2020, there were multiple police officers who were present in the location, witnessed the incident and failed to intervene.

19. On May 17, 2020, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendant TURZER.

20. On May 17, 2020, plaintiff was caused to suffer severe personal injuries.

21. Prior to the commencement of this action, notices of claim in writing were served on behalf of JOSE RAMOS upon THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

22. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of JOSE RAMOS upon THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

23. Within ninety days (90) of May 17, 2020, a notice of claim in writing was served on behalf of JOSE RAMOS upon THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

24. Prior to the commencement of this action, notice of the intention of JOSE RAMOS to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of JOSE RAMOS upon THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

25. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT neglected and has refused to pay said claim or adjust same.

26. A hearing pursuant to General Municipal Law 50-h has not been requested.

27. This action is commenced within one (1) year and ninety (90) days from May 17, 2020, the date the accident as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION

Pursuant to §1983 (EXCESSIVE FORCE)

28. Paragraphs 1 through 27 are hereby realleged and incorporated by reference herein.

29. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

30. That Defendants had no legal cause or reason to use excessive force in effectuating the arrest or after JOSE RAMOS was arrested and in custody.

31. That Defendants violated JOSE RAMOS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

32. That at the time of the arrest or while in custody, JOSE RAMOS did not pose a threat to the safety of the arresting officers.

33. That JOSE RAMOS was not actively resisting arrest or attempting to evade arrest.

34. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected JOSE RAMOS to excessive force while effectuating his arrest.

35. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

36. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of JOSE RAMOS's rights, subjected JOSE RAMOS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

37. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JOSE RAMOS's civil rights, including but not limited to the right to be free from the application of excessive force.

38. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

39. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and

employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

40. That as a result of the above-described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

41. That the above-described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of JOSE RAMOS's rights alleged herein.

42. By reason of the foregoing, JOSE RAMOS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

43. The aforementioned use of excessive force in effectuating the arrest and detention of the plaintiff by TURZER and unknown police officers, "JOHN" or "JANE" DOES, violated the plaintiff's constitutional rights.

44. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

45. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of New York, and under the authority of their office as police officers for such city and county.

AS AND FOR A SECOND CAUSE OF ACTION

Pursuant to State Law (EXCESSIVE FORCE)

46. Paragraphs 1 through 45 are hereby realleged and incorporated by reference herein.

47. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

48. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

49. That Defendants had no legal cause or reason to use excessive force in effectuating JOSE RAMOS's arrest or after JOSE RAMOS was arrested and in custody.

50. That at the time of the arrest, JOSE RAMOS did not pose a threat to the safety of the arresting officers.

51. That JOSE RAMOS was not actively resisting arrest or attempting to evade arrest.

52. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

53. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of JOSE RAMOS's rights, subjected JOSE RAMOS to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

54. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JOSE RAMOS's civil rights, including but not limited to the right to be free from the application of excessive force.

55. By reason of the foregoing, JOSE RAMOS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation,

and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION

Pursuant to State Law (Assault and Battery)

56. Paragraphs 1 through 55 are hereby realleged and incorporated by reference herein.

57. That Defendants intended to cause harmful bodily contact to JOSE RAMOS.

58. That Defendants, in a hostile manner, voluntarily caused JOSE RAMOS'S injuries.

59. That Defendants' contact with JOSE RAMOS constituted a battery in violation of the laws of the State of New York.

60. That by reason of the foregoing, JOSE RAMOS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION

Pursuant to §1983 (FAILURE TO INTERVENE)

61. Paragraphs 1 through 60 are hereby realleged and incorporated by reference herein.

62. That Defendants failed to intervene when Defendants knew or should have known that JOSE RAMOS's constitutional rights were being violated.

63. That Defendants had a realistic opportunity to intervene on behalf of JOSE RAMOS, whose constitutional rights were being violated in their presence.

64. That a reasonable person in the Defendants' position would know that JOSE RAMOS's constitutional rights were being violated.

65. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of JOSE RAMOS's rights, deprived JOSE RAMOS of his liberty when they failed to intervene to protect

him from Defendants' use of excessive force and cruel and unusual punishment, in violation of JOSE RAMOS's rights pursuant to the Fourth and Eighth Amendments of the United States Constitution.

66. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by police officers. Thus, as a result of the above-described policies and customs, JOSE RAMOS was not protected from Defendants' unconstitutional actions.

67. That by reason of the foregoing, JOSE RAMOS suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION

Pursuant to State Law (Negligence)

68. Paragraphs 1 through 67 are hereby realleged and incorporated by reference herein.

69. That Defendants were reckless, careless, and indifferent to JOSE RAMOS's physical well-being while JOSE RAMOS was in Defendants' custody.

70. That Defendants had a duty to exercise reasonable care to secure the safety of JOSE RAMOS from injury while in Defendants' charge.

71. That Defendants breached their duty to JOSE RAMOS when Defendants failed to exercise reasonable care to secure the safety of JOSE RAMOS while in Defendants' charge, or when Defendants discontinued their aid or protection of JOSE RAMOS and left JOSE RAMOS in a worse position than when Defendants took charge of him.

72. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

73. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. As a result of the foregoing, JOSE RAMOS was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

75. Paragraphs 1 through 74 are hereby realleged and incorporated by reference herein.

76. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

77. That at all times Defendants were acting within the scope of their employment.

78. That Defendant CITY was able to exercise control over Defendants' activities.

That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.

79. All of said injuries may be permanent. By reason of the foregoing, JOSE RAMOS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION

Pursuant to § 1983 (FALSE ARREST)

80. Paragraphs 1 through 79 of this complaint are hereby realleged and incorporated by reference herein.

81. That Defendants had neither valid evidence for the arrest of JOSE RAMOS nor legal cause or excuse to seize and detain him.

82. That in detaining JOSE RAMOS and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. JOSE RAMOS was but one of those persons.

83. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

84. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

85. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of JOSE RAMOS's rights alleged herein.

86. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of JOSE RAMOS's rights, subjected JOSE RAMOS to an unlawful detention, in violation of the Fourth and

Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

87. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JOSE RAMOS's civil rights, including but not limited to the right to be free from being falsely arrested.

88. By reason of the foregoing, JOSE RAMOS suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION

(Pursuant to State Law (FALSE ARREST))

89. Paragraphs 1 through 88 of this complaint are hereby realleged and incorporated by reference herein.

90. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend hours incarcerated.

91. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

92. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

93. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

94. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty

caused him great humiliation and as a result of which he has been damaged.

95. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

96. The charges against plaintiff were wholly dismissed.

97. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

98. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, Plaintiffs JOSE RAMOS and VARGAS respectfully requests that judgment be entered:

1. Awarding PLAINTIFF JOSE RAMOS compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding PLAINTIFF JOSE RAMOS punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF JOSE RAMOS interest from May 17, 2020;
4. Awarding PLAINTIFF JOSE RAMOS reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
August 16, 2021

Roberta D. Asher

By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street

Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE RAMOS,

Index No.:

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

P.O. ASHLEY TURZER (Shield #26919), THE CITY OF NEW
YORK, THE NEW YORK CITY POLICE DEPARTMENT and
POLICE OFFICERS JANE/JOHN DOES 1-10 (actual names
unknown at this time),

Defendants.
-----X

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York

August 16, 2021

Roberta D. Asher

ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSE RAMOS,

Plaintiff,

-against-

P.O. ASHLEY TURZER (Shield #26919), THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and POLICE OFFICERS JANE/JOHN DOES 1-10 (actual
names unknown at this time),

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: ***Roberta D. Asher***

Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2021 .

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2021 , at 9:30 A.M.
Dated: